

Eureka, Calif., Votes No on License Plate Reader Cameras

The Eureka City Council tossed a contract to install 21 automated license plate reader cameras throughout the city at a Tuesday meeting, with a vote that came after public opposition to the tech.

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(TNS) — The Eureka City Council tossed a contract to install 21 automated license plate reader cameras throughout the city at a Tuesday meeting.

After two hours of public comment opposing the cameras, they unanimously voted to deny a request for Eureka Police Department to enter into a two-year contract with

Flock Safety for the cameras, which take images and collect data of the license plate, make, model and color of every car that would pass under fixed cameras planned to be positioned at points of ingress of the city.

Councilmember Renee Contreras-DeLoach said, after hearing the commenters, she knows the intention of the cameras is good: “It’s to be able to solve crimes for us and make things safer because we are dealing with some issues here in our community.”

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But this aside, she said the framers of the Constitution were clear about the right to privacy.

“The intent of, I think the Fourth Amendment in particular, was this idea of privacy, and that people couldn’t really encroach and intrude on your lives without there being just cause,” she said — noting that governments, in particular, should avoid invading privacy.

In Eureka City Hall and over Zoom, many public commenters said they were concerned about other agencies being able to get their hands on data. In particular, people had issue with sharing the travel habits of people on hot lists for crimes in other states that are not against the law in California, like health care officials being charged for providing abortions or people wanted by federal immigration enforcement.

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“I’d be scanned on my way to St Joseph, Open Door, my dermatologist, Planned Parenthood, CVS, Walgreens, Rite Aid, Safeway, WinCo, ENF, the Co-Op, Grocery Outlet, Target, Walmart, the DMV, social security, Food for People and City Hall,” Kendall Finch, a Eureka resident, said if the cameras were installed. “We’re told that

the purpose of these cameras is to moderate who enters and leaves Eureka, so why do we need them blanketing the whole city? I'm strongly concerned for my neighbors from marginalized communities, who are likely to be disproportionately impacted by increased surveillance."

Scott Palmer, another commenter, said even though he wholeheartedly believes in giving Eureka police everything they need, he said since he won't know who will be leading the police department in five years, he can't support the cameras.

Others noted issues with the company, like a case of Kansas police officers using the data to track their former romantic partners, or were concerned the company is private and the storage and encryption tools were not entirely clear.

"I tried to put myself in the headspace of someone that maybe just watched 'Minority Report' or read '1984' and they were like, 'Yeah, Sign me up. Let's do it,' " said Nathan, who urged the council to vote against it.

A Flock Safety camera is shown from an image from a company presentation to city council in October 2024. (Screenshot)

The policy itself has some safeguards, like a clause stating data would not be shared with out-of-state police agencies or private companies. But council members were concerned that a federal court could subpoena the data, which Flock said is owned by EPD and automatically deleted after 30 days.

Previously at an October 2024 meeting, the council had asked for more input on the police department's policy, citing data and privacy concerns. Eureka Police Chief Brian Stephens fine-tuned the policy with input from the Independent Police Auditor, Eureka's Community Oversight on Police Practices board, and the city attorney.

On Tuesday he emphasized he believes enough safeguards are in place now to address concerns about privacy and data sharing.

"As a chief of police, I can't address that fear and concern on a national level, but I can address it on a local level, as it relates to the implementation of technology," he

said. EPD wants the cameras to deter crime and locate wanted vehicles quickly, to address crimes from missing people cases to stolen cars, he said.

Stephens said presently, tracking down a wanted car takes a lot of manpower — one example was a case where someone lit a person on fire in broad daylight. He said it took EPD three hours to track down a description of the car and three more hours to scour the city for the suspect.

The department presently has a few security cameras and largely relies on private cameras that people can volunteer to hand over footage, he said. EPD would also be notified if cars pass by Humboldt County Sheriff's Office's six Flock cameras.

Stephens said the cameras would cut down the time finding a car associated with a crime and help give the department a direction of travel to find a suspect quicker, previously describing the cameras as a "force multiplier."

A couple of the council members spoke in support of the commenters' attention to the issue at the meeting, as well as the effort put in by Stephens and city staff on the policy, but ultimately all were opposed to the contract.

"If this is an issue that is important to you, and if — really it's an issue that is important to a lot of people — you should reach out to the board of supervisors who oversees the sheriff's department. Since Flock is a subscription service, there's something that can be canceled on a relatively short timeline," said Councilmember Kati Moulton.

"It's hard to support this tool when there's so much concern from all of us, frankly, so I hope we can figure out another way to to help the public feel safe in their community, and help our police force, which actually are there to help protect us, and they're not bad," said Councilmember Scott Bauer, addressing comments that spoke against the police.

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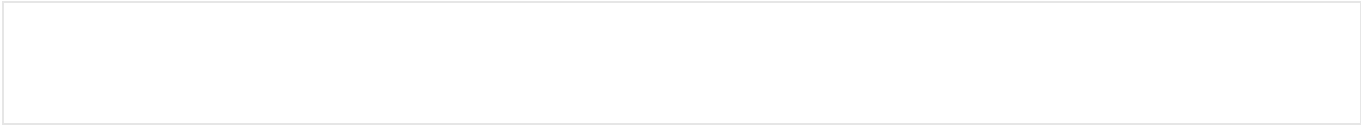
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